

24VECV00640 24VECV00640

County: los-angeles

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Case Number: 24VECV00640 Hearing Date: September 21, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Hamid Reza Mirshojae,

Plaintiff,

v.

Ahang Mirshojae, et al.,

Defendants.

Case

Number Department

24VECV00640 107

COURT'S [TENTATIVE]

RULING RE:

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE
CASE]:

Deny

I.

BACKGROUND

On

February 13, 2024, plaintiffs Hamid Reza Mirshojae and Woodland Hills Medical Clinic II, Inc. (collectively, "Plaintiffs") filed a complaint against defendants Ahang Mirshojae aka Ahang Zarin Kelk aka Ahang Z. Kelk aka Ahang Zarrin Kelk aka Ahang Z. Mirshojae, and 5975-5999 Topanga Canyon Blvd LLC (collectively, "Defendants") alleging a fraudulent transfer cause of action.

The

Complaint alleges as follows: Plaintiff Hamid Reza Mirshojae ("Hamid") and defendant Ahang Mirshojae ("Ahang") divorced in 2010 and subsequently became engaged in multiple lawsuits against each other. In October 2017, Hamid and Ahang entered into a written settlement agreement to settle these lawsuits. ٢٢

In

2021, Hamid and co-plaintiff Woodland Hills Medical Clinic II, Inc. ("Medical Clinic" and, together with Hamid, "Plaintiffs") initiated a new lawsuit (the "Underlying Case") against Ahang and co-defendant 5975-5999 Topanga Canyon Blvd LLC ("Blvd LLC" and, together with Ahang, "Defendants" and Defendants, together with Plaintiffs, "Parties") for breach of the written settlement agreement.

Ahang owns or owned a 51% interest in Blvd LLC. ٢

In

December 2023, Defendants accepted a California Code of Civil Procedure section 998 offer to compromise (the "998 Agreement"), under which Parties agreed that Defendants would pay Plaintiffs \$270,000, plus reasonable attorneys' fees and costs in exchange for a mutual release of all claims and the dismissal of the Underlying Case.

On

May 24, 2024, Plaintiffs filed the operative first amended complaint. Therein Plaintiffs allege that after the lawsuit was filed, Defendants' counsel issued a cashier's check to Plaintiffs in the amount of \$270,000, but this evidences Defendants' fraudulent transfers because it was issued and signed by Jason Mirshojae, Hamid and Ahang's son.

On

August 29, 2025, the Court granted Plaintiffs' motion for substitute plaintiffs after Hamid's death, and the case no proceeds on behalf of Hamid's estate with Alireza Mirshojae as Decedent's personal representative.

On

July 23, 2026, Ahang filed the instant motion to stay proceedings or alternatively stay discovery. On September 8, 2026, Plaintiffs filed their opposition. On September 14, 2026,

II.

EVIDENTIARY

OBJECTIONS

Plaintiffs

object to the Declaration of Ahang submitted in support of the instant motion.

Sustained:

3

Overruled:

2, 4

Plaintiffs

object to the Declaration of Daniel Wu submitted in support of the instant motion.

Overruled:1

III.

LEGAL

STANDARD

The

court's power to stay proceedings derives from the court's power to control its own processes and orders to ensure orderly administration of justice. (Code Civ. Proc., § 128, subd. (a)(3); Bailey v. Fosca Oil Co. (1963) 216 Cal.App.2d 813, 817-18.)

"Where

. . . a defendant's silence is

constitutionally guaranteed, the court should weigh the parties' competing interests with a view toward accommodating the interests of both parties, if possible. An order staying discovery until expiration of the criminal statute of limitations would allow real parties to prepare their lawsuit while alleviating petitioners' difficult choice between defending either the civil or criminal case." (Pacers, Inc.

v. Superior Court ("Pacers") (1984) 162 Cal.App.3d 686, 690.) "This remedy is in accord with federal practice where it has been consistently held that when both civil and criminal proceedings arise out of the same or related transactions, an objecting party is generally entitled to a stay of discovery in the civil action until disposition of the criminal matter." (Id.)

Pacers,

supra, 162 Cal.App.3d

at p. 690 indicates an objecting party is entitled to a stay of proceedings in these circumstances. However, more recent authority states the court must weigh various factors and indicates parallel criminal and civil proceedings are permissible.

To

determine whether to stay civil proceedings in light of a criminal proceeding, the court considers "the extent to which the defendant's fifth amendment rights are implicated" and the following five factors: "(1) the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (2) the burden which any particular aspect of the proceedings may impose on defendants; (3) the convenience of the court in the management of its cases, and the efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending civil and criminal litigation." (Avant! Corp. v. Superior Court ("Avant") (2000) 79 Cal.App.4th 876, 885.)

The

Court of Appeal in Avant, supra, 79 Cal.App.4th at pp. 885-886, brackets removed, noted that the Ninth Circuit has held that "a defendant has no absolute right not to be forced to choose between testifying in a civil matter and asserting his Fifth Amendment privilege. Not only is it permissible to conduct a civil proceeding at the same time as a related criminal proceeding, even if that necessitates invocation of the Fifth Amendment privilege, but it is even permissible for the trier of fact to draw adverse inferences from

the invocation of the Fifth Amendment in a civil proceeding.” The Court further noted that “Even where the civil discovery process is directed against an individual defendant who is also a defendant in a related criminal case, the Ninth Circuit has held that ‘the Constitution does not ordinarily require a stay of civil proceedings pending the outcome of criminal proceedings.’” (Id. at p. 885, brackets removed.) The Court also stated:

Keating observed that the question of whether a civil proceeding should be stayed pending the outcome of a parallel criminal proceeding often rests not on the constitutional issue of self-incrimination, but on the issue of abuse of discretion. “ ‘In the absence of substantial prejudice to the rights of the parties involved, [simultaneous] parallel [civil and criminal] proceedings are unobjectionable under our jurisprudence.’ [Citation.] ‘Nevertheless, a court may decide in its discretion to stay civil proceedings ... “when the interests of justice seem [] to require such action.” ’

(Id.,
original brackets.)

“Accommodation of the various interests . . . is usually made to a defendant in a civil action ‘from the standpoint of fairness, not from any constitutional right. . . .’” (Fuller v. Superior Court (“Fuller”) (2001) 87 Cal.App.4th 299, 307.) If possible, the court “weigh[s] the parties’ competing interests with a view toward accommodating the interests of both parties, if possible.” (Id.) “[T]he trial court must exercise its discretion in assessing and balancing ‘the nature and substantiality of the injustices claimed’ on all sides.” (Id.)

IV.

DISCUSSION

Ahang moves to stay proceedings or alternatively stay discovery because her Fifth Amendment rights are heavily implicated by a pending criminal case involving substantially similar facts and she is unable to meaningfully participate in this case. Ahang argues that the civil and criminal cases feature overlapping parties, witnesses, facts, and issues, and she cannot substantively participate in this action without waiving her Fifth Amendment privilege against self-incrimination. Ahang also argues that her incarceration makes it difficult

for her to assist counsel in her defense and she is unable to appear for civil proceedings and cannot reliably maintain communication with her counsel.

The Extent to
which Defendant's Fifth Amendment Rights are Implicated

Ahang

has been charged with murdering Hamid in a pending felony criminal case. Ahang has been charged with one felony count of murder and one felony count of assault with a deadly weapon. (Declaration of Ahang Mirshojae ("Mirshojae Decl."), ¶ 2.)

Ahang

argues that the instant action's claims are rooted in the parties' financial relationship, their prior litigation and dissolution proceedings, and alleged transfers of assets and entity interests connected to Ahang and Hamid. Ahang argues that the criminal prosecution places Ahang's alleged motive, intent, relationship history, and financial benefit directly at issue. Ahang argues discovery in this action would likely investigate issues that could furnish evidence, impeachment material, or admissions to be used against Ahang in the criminal case. Thus, Ahang argues, the overlap is substantial and unavoidable and she cannot respond to discovery concerning her finances, asset transfer, or dealings with Hamid and other individuals implicated in both matters without either incriminating herself or invoking the privilege against self-incrimination. Ahang also argues that both matters will likely involve many of the same witnesses such as her mother and daughter to whom she allegedly fraudulently transferred assets to. Ahang argues that these individuals are likely sources of testimony in this case and the same witnesses may be relevant in the criminal matter for purposes of establishing background, relationship dynamics, financial motive, state of mind, or similar purposes establishing surrounding events before and after Hamid's death.

In

opposition, Plaintiffs argue that the criminal case concerns events in 2024 unrelated to the Underlying Action and the instant action. Plaintiffs argue that the assault with a deadly weapon count arises from a May 3, 2024 attack in which Hamid was beaten with a baseball bat by masked assailants outside his medical clinic and his cellphone was taken. (Beatty Decl., ¶ 21.) The murder count arises from Hamid's killing in August 2024. (Beatty Decl., ¶ 22.) Plaintiffs argue that because both alleged offenses postdate the 2021 transfers challenged

in the instant action and the claim that Ahang failed to pay the 998 Agreement, the claims in this action and the criminal action do not overlap and Ahang's Fifth Amendment rights are not meaningfully implicated.

“[T]he

strongest case for deferring civil proceedings until after completion of criminal proceedings is where a party under indictment for a serious offense is required to defend a civil or administrative action involving the same matter.’ [citation] Where the parallel proceedings involve the same event or occurrence, there is likely to be substantial overlap in the evidence.” (Cho v. City of San Jose (N.D. Cal. 2022) 636 F.Supp.3d 1034, 1038 [considering the Keating factors].) Here, Ahang has failed to show both this matter and the criminal matter involve the same event or occurrence. As argued, the criminal matter involves one instance where Hamid was beaten with a bat and one instance when Hamid was killed, while the instant action involves a failure to pay Hamid pursuant to the 998 Agreement and allegedly fraudulent transfers in 2021. Thus, there is not likely to be substantial overlap in evidence. While this action will undoubtedly involve the same witnesses, family members of Hamid and Ahang, as both actions involve Hamid and Ahang, this is not sufficient to show that there is a substantial overlap. Accordingly, Ahang has failed to show her Fifth Amendment rights are meaningfully implicated. This factor weighs against granting the motion.

The

fact that possible motives that may be investigated may include the financial disputes between Hamid and Ahang, Ahang could invoke her privilege against self-incrimination to any discovery regarding these issues. (Avant 79 Cal.App.4th at p. 882 [“Other courts have refused to go beyond allowing civil defendants to refuse to answer particular questions propounded in the course of discovery by expressly invoking their privilege against self-incrimination”].)

Plaintiffs’

Interest in Proceeding Expeditiously with the Litigation or Any Particular Aspect of it and Potential Prejudice to Plaintiffs of a Delay

Ahang

argues that any delay by a limited stay would not significantly prejudice Plaintiffs because trial is expected to take place in the next twelve months. (Mirshojae Decl., ¶ 3.) To require a party to wait for the result of a related criminal action “would increase the danger of prejudice resulting from the loss

of evidence, including the inability of witnesses to recall specific facts, or the possible death of a party.” (Avant, supra, 79 Cal.App.4th at p. 887.)

Ahang

argues that there is no risk of loss of evidence given that she is incarcerated and the requested length of stay is not so protracted that witnesses will be unable to recall specific facts. The Court disagrees. The fact that Ahang is incarcerated does not mean there is no risk of loss of evidence because other individuals, such as the recipients of the allegedly fraudulent transfers could lose evidence inadvertently. Furthermore, Plaintiffs have shown that Ahang has made other fraudulent transfers to hide assets in the past. (Declaration of Christopher Beatty (“Beatty Decl.”), ¶ 7; Ex. D ¶¶ 3-11; Ex. B ¶¶ 9-12.) Plaintiffs’ counsel also states that since her arrest, Ahang has continued to transfer assets to her mother, Zahra Kheyrolomour, Nova Vitae Recovery Center, and her children. (Beatty Decl., ¶ 23.)

In

addition, this action was filed in 2024 and concerns transfers that occurred in 2021. To wait an estimated additional year could indeed hinder the witnesses’ ability to recall specific facts. With no timeline proposed by Ahang, the stay would be indefinite.

Accordingly,

this factor weighs against granting the motion.

Burden Which any

Particular Aspect of the Proceeding May Impose on Defendant

Ahang

argues that denying the motion will impose a burden on her because it is difficult for her to effectively communicate with her counsel and review and approve filings. Ahang states that “[i]t is extremely difficult for me to maintain regular communication with my counsel. I have limited telephone access, little to no access to computers or the law library, cannot rely on the prompt delivery of mail, and cannot appear personally for civil proceedings.” (Mirshojae Decl., ¶ 3.) She also states that the instant proceedings distract her from her ability to fully defend herself in the criminal proceedings. (Mirshojae Decl., ¶ 5.)

Plaintiffs

argue that the record refutes Ahang's arguments because since she has been incarcerated Ahang has been able to retain counsel, has filed the instant motion, has responded to other filings in this action the Underlying Action, and Ahang's other civil actions, including coordinating an appeal. (Beatty Decl., ¶¶ 14-19.)

The

Court finds that this factor weighs in favor of denying the motion because Ahang has been able to litigate this and other actions while incarcerated.

Convenience of

the Court in the Management of its Cases and the Efficient Use of Judicial Resources

Ahang

argues that a stay would not be against the Court's interest in fairly and expeditiously disposing of civil cases because there is no history of prior delay and the requested stay would only cause delay to the extent absolutely necessary. Ahang argues that staying the proceedings may benefit the efficient resolution of this matter because parallel factual or legal issues may be resolved and she can respond substantively to discovery requests and sit for deposition.

In

opposition, Plaintiffs argue that the docket-management interest here favors resolution, not indefinite delay.

In

Avant, supra, 79 Cal.App.4th at p. 888, the Court noted that "[c]learly, denial of the stay motion promotes the convenience of the court in the management of its cases" and "[c]onvenience of the courts is best served when motions to stay proceedings are discouraged." These same principles apply here. Further, as noted by the Court of Appeal in Fuller, supra, 87 Cal.App.4th at p. 307, "[a]ccommodation of the various interests . . . is usually made to a defendant in a civil action 'from the standpoint of fairness, not from any constitutional right. . . .'" Thus, the Court finds that the efficient use of judicial resources is not served by an indefinite stay. This factor weighs against granting the motion.

Interests of

Persons Not Parties to the Civil Litigation

Ahang

states that this factor weighs neutral because there are no nonparties whose interests would be affected by either the stay or continuation of the proceedings. Thus, this factor does not weigh either in favor, or against, granting the motion.

Interest of the Public in the Pending Civil and Criminal Litigation

Ahang

argues that the public's interest in the speedy resolution of the civil proceeding does not outweigh the other facts and that this action is a private disputes between former spouses and does not involve any public right nor does it enforce regulatory or statutory schemes designed to protect the public. Plaintiff argues that the public interest factor weighs neutral.

The

Court in *Avant* held that, "the public has a significant interest in a system that encourages individuals to come to court for the settlement of their disputes." (*Avant*, supra, 79 Cal.App.4th at pp. 888-889.) Thus, the court finds that here, the public has an interest in resolving this dispute. Ahang's request for an indefinite stay of proceedings does not protect the public's interest in encouraging individuals to come to court to resolve disputes. Accordingly, this factor weighs against granting the motion.

The

Court finds that the factors discussed above weigh against granting the motion for stay proceedings or in the alternative stay discovery.

V.

CONCLUSION

For

the foregoing reasons, the Motion is denied.

Dated: September

18, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court